

STATE OF NEW YORK

10841--B

IN ASSEMBLY

April 6, 2026

Introduced by M. of A. STECK, K. BROWN, NORBER -- read once and referred to the Committee on Consumer Affairs and Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to protecting minors online from addictive features of social media

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The general business law is amended by adding a new article 45-C to read as follows:

ARTICLE 45-C

PROTECTING MINORS ONLINE

Section 1550. Definitions.

1551. Minors as account holders of platforms that provide an addictive feature.

1552. Age verification.

1553. Enforcement.

1554. E-Safety advisory commission.

§ 1550. Definitions. For the purposes of this article, the following terms shall have the following meanings:

1. "Addictive feature" means any of the following psychologically exploitative features intended to maximize engagement that foreseeably lead to compulsive use:

(a) an addictive feed;

(b) autoplay; and/or

(c) any other feature defined in regulations adopted pursuant to section fifteen hundred fifty-three of this article as an addictive feature.

2. "Covered platform" means, subject to regulations adopted pursuant to section fifteen hundred fifty-three of this article, an internet website, online service, online application, or mobile application, including, but not limited to, a social media platform, as defined in section fifteen hundred fifty-one of this article, that offers users or

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD14069-04-6

1 provides users with an addictive feature as a significant part of the
2 service provided by that internet website, online service, online appli-
3 cation, or mobile application. This definition does not cover either of
4 the following:

5 (a) an internet website, online service, online application, or mobile
6 application for which interactions between users are limited to commer-
7 cial transactions or to consumer reviews of products, sellers, services,
8 events, or places, or any combination thereof; or

9 (b) an internet website, online service, online application, or mobile
10 application that operates a feed for the primary purpose of cloud stor-
11 age.

12 3. "Material harmful to minors" means any material that:

13 (a) the average person applying contemporary community standards would
14 find, taken as a whole, appeals to the prurient interest;

15 (b) depicts or describes, in a patently offensive way, sexual conduct;
16 and

17 (c) when taken as a whole, lacks serious literary, artistic, poli-
18 tical, or scientific value for minors.

19 4. "Social media platform" means an online forum, website, or applica-
20 tion that:

21 (a) allows users to upload content or view the content or activity of
22 other users;

23 (b) ten percent or more of the daily active users who are younger than
24 sixteen years of age spend on average two hours or more per day on the
25 online forum, website, or application on the days when using the online
26 forum, website, or application during the previous twelve months or, if
27 the online forum, website, or application did not exist during the
28 previous twelve months, during the previous month;

29 (c) employs algorithms that analyze user data or information on users
30 to select content for users; and

31 (d) has any of the following addictive features:

32 (i) infinite scrolling, including, but not limited to:

33 (A) continuously loading content, or content that loads as the user
34 scrolls down the page without the need to open a separate page; or

35 (B) seamless content, or the use of pages with no visible or apparent
36 end or page breaks;

37 (ii) push notifications or alerts sent by the online forum, website,
38 or application to inform a user about specific activities or events
39 related to the user's account;

40 (iii) displays personal interactive metrics that indicate the number
41 of times other users have clicked a button to indicate their reaction to
42 content or have shared or reposted the content;

43 (iv) auto-play video or video that begins to play without the user
44 first clicking on the video or on a play button for that video; or

45 (v) live-streaming or a function that allows a user or advertiser to
46 broadcast live video content in real-time.

47 The term "social media platform" shall not include an online service,
48 website, or application where the exclusive function is email or direct
49 messaging consisting of text, photographs, pictures, images, or videos
50 shared only between the sender and the recipients, without displaying or
51 posting publicly or to other users not specifically identified as the
52 recipients by the sender.

53 § 1551. Minors as account holders of platforms that provide an addic-
54 tive feature. 1. (a)(1) A covered platform shall not provide an addic-
55 tive feature to a user who is under sixteen years of age.

(2) This paragraph does not prohibit a covered platform from permitting a user who is under sixteen years of age to create or maintain an account on the covered platform if that user is not provided with any addictive features.

(b) A covered platform shall implement reasonable measures to ensure that users under sixteen years of age are not provided any addictive features on the covered platform.

(c) Except as provided in paragraph (a) of this subdivision, a covered platform shall:

(1) delete the account of users under sixteen years of age and any personal information associated with the user of the account;

(2) allow an account holder younger than sixteen years of age to easily request to terminate the account. Such account shall be terminated within five business days of such request;

(3) allow a confirmed parent or guardian of an account holder younger than sixteen years of age to request that the minor's account be terminated. Such account shall be terminated within ten business days of such request; and

(4) permanently delete all personal information held by the social media platform relating to the terminated account, unless there are legal requirements to maintain such information.

2. Subdivision one of this section does not apply to a covered platform that permits a user under sixteen years of age to create or maintain an account on the platform pursuant to subparagraph two of paragraph (a) of subdivision one of this section.

3. The attorney general shall maintain a website to receive complaints, information or referrals from members of the public concerning a social media platform's alleged compliance or non-compliance with the provisions of this article.

§ 1552. Age verification. Before providing an addictive feature to a user, a covered platform shall verify the age of a user pursuant to the age assurance regulations established under article forty-five of this chapter.

§ 1553. Enforcement. 1. (a) No earlier than one hundred eighty days after the effective date of this article, whenever it appears to the attorney general, either upon complaint or otherwise, that any person or entity, within or outside the state, has knowingly or recklessly engaged in or is about to engage in any of the acts or practices stated to be unlawful in this article, the attorney general may bring an action or special proceeding in the name and on behalf of the people of the state of New York to enjoin any violation of this article, to obtain restitution of any moneys or property obtained directly or indirectly by any such violation, to obtain disgorgement of any profits or gains obtained directly or indirectly by any such violation, including but not limited to the destruction of unlawfully obtained data, to obtain damages caused directly or indirectly by any such violation, to obtain civil penalties of up to fifty thousand dollars per violation, and to obtain any such other and further relief as the court may deem proper, including preliminary relief. Where the person or entity's actions demonstrate a pattern of knowing and reckless conduct in violation of this article, punitive damages may be assessed against the person or entity.

(b) No earlier than one hundred eighty days after the effective date of this article, a civil action may be brought by a minor account holder against a person or entity, within or outside the state, which has knowingly or recklessly engaged in any of the acts or practices stated to be unlawful in this article to obtain restitution of any moneys or property

1 obtained directly or indirectly by any such violation, to obtain
2 disgorgement of any profits or gains obtained directly or indirectly by
3 any such violation, including but not limited to the destruction of
4 unlawfully obtained data, to obtain damages caused directly or indirect-
5 ly by any such violation, to obtain civil penalties of up to ten thou-
6 sand dollars per violation, and to obtain any such other and further
7 relief as the court may deem proper, including preliminary relief. Where
8 the person or entity's actions demonstrate a pattern of knowing and
9 reckless conduct in violation of this article, punitive damages may be
10 assessed against the person or entity. Any action brought under this
11 paragraph shall be brought on behalf of a minor account holder.

12 2. A civil action for a claim under this subdivision shall be brought
13 within one year from the date the complainant knew, or reasonably should
14 have known, of the alleged violation. This section does not preclude any
15 other available remedy at law or equity.

16 3. The attorney general shall have the authority to investigate
17 violations of this article. The attorney general shall have authority to
18 issue, through the attorney general, subpoenas for the attendance of
19 witnesses before the commission. A subpoena issued under this section
20 shall be regulated by the civil practice law and rules. All information
21 collected and held by the attorney general pursuant to an investigation
22 under this article shall be deemed confidential and shall not be subject
23 to public disclosure under the freedom of information law or any other
24 law which requires public disclosure of records maintained by a govern-
25 mental agency.

26 4. The attorney general shall promulgate such rules and regulations as
27 are necessary to effectuate and enforce the provisions of this article.

28 § 1554. E-Safety advisory commission. 1. A commission to be known as
29 the E-Safety advisory commission is hereby created to investigate, eval-
30 uate, and make recommendations to the attorney general on additional
31 addictive features to be covered under this article.

32 2. (a) The commission shall consist of five members, to be appointed
33 as follows: one member to be appointed by the governor, one member to be
34 appointed by the temporary president of the senate, one member to be
35 appointed by the minority leader of the senate, one member to be
36 appointed by the speaker of the assembly, and one member to be appointed
37 by the minority leader of the assembly.

38 (b) The members of the commission shall receive no compensation for
39 their services, but shall be allowed their actual and necessary expenses
40 incurred in the performance of their duties under this article. The
41 commission may employ and at pleasure remove such personnel as it may
42 deem necessary for the performance of its functions and fix their
43 compensation within the amounts made available by appropriation there-
44 for.

45 3. The commission shall investigate additional addictive features not
46 covered under this article and recommend to the attorney general that
47 such addictive features are covered under this article.

48 4. (a) For the accomplishment of its purposes, the commission may meet
49 and hold public and/or private hearings within or without the state, and
50 shall have all the powers of a legislative committee pursuant to the
51 legislative law. The commission is authorized and empowered to undertake
52 any studies, inquiries, surveys or analyses it may deem relevant through
53 its own personnel or in cooperation with or by agreement with any other
54 public or private agency.

55 (b) To the maximum extent feasible, the commission may request and
56 shall be entitled to receive and shall utilize and be provided with such

1 facilities, resources and data from any court in the state and from any
2 subdivision, department, board, bureau, commission, office, agency, or
3 other instrumentality of the state or of any political subdivision ther-
4 eof as it deems necessary or desirable for the proper execution of its
5 powers and duties and to effectuate the purposes set forth in this
6 section.

7 (c) The commission is hereby authorized and empowered to enter into
8 any agreements and to do and perform any acts that may be necessary,
9 desirable or proper to carry out the purposes and objectives of this
10 section.

11 (d) The commission is required to hold at least two meetings per year.

12 5. The commission shall make recommendations and a report of its find-
13 ings. The commission shall submit such recommendations and report to the
14 attorney general, the governor, the temporary president of the senate,
15 the minority leader of the senate, the speaker of the assembly, and the
16 minority leader of the assembly, and make public online on the gover-
17 nor's website no later than December first of each year.

18 § 2. This act shall take effect immediately.